

NEW MEXICO RESIDENTIAL LEASE AGREEMENT

This Agreement is between _____ [Landlord's Name] of
_____ [Street Address] in the City of _____, State of
New Mexico hereinafter known as the "Landlord"

AND

_____, _____, _____,
_____, _____, _____,

hereinafter known as the "Tenant(s)" agree to the following:

1. Term. This Agreement shall begin on the ____ day of _____, 20____ and end on the
____ day of _____, 20____ hereinafter known as the "Lease Term".

2. Security Deposit. A Security Deposit in the amount of \$_____ (US Dollars) shall
be required by the Tenant(s) at the execution of this Agreement to the Landlord for the faithful
performance of all the terms and conditions of this Agreement. The Security Deposit is to be
returned to the Tenant(s) within ____ days after the end of the Lease Term less any damage
charges and without interest. This Security Deposit shall not be credited towards rent unless the
Landlord gives their written consent.

3. Rent. The Tenant(s) shall pay the Landlord in equal monthly installments of
\$_____ (US Dollars) hereinafter known as the "Rent". The Rent will be due on
the ____ of every month and paid via the following instructions: _____

4. Occupants. The Premises is to be occupied strictly as a residential dwelling with the following
individual(s) in addition to the Tenant(s):

_____, _____, _____,
_____, _____, _____,

hereinafter known as the "Occupant(s)".

5. Offer to Rent. The Landlord hereby rents to the Tenant(s), subject to the following terms and conditions of this Agreement, a _____ [Type of residence such as: Apartment, Home, Condo, etc.] with the following mailing address _____ [Street Address] in the City of _____, State of _____ consisting of ____ Bathrooms and ____ Bedroom(s) hereinafter known as the "Premises".

6. Purpose. The Tenant(s) and any Occupant(s) may only use the Premises as a residential dwelling. It may not be used for storage, the manufacturing of any type of food or product, a professional service(s), or for any commercial use unless otherwise stated in this Agreement.

7. Furnishing. The Premises is:

☐ - To be furnished with the following items: _____

with all other furnishings needed to be provided by the Tenant(s). Any damage to the Landlord's furnishings shall be the liability of the Tenant(s), reasonable wear-and-tear excepted, to be billed directly or less the Security Deposit.

☐ - Not furnished.

8. Appliances. The Landlord shall:

☐ - Provide the following appliances in the Premises for the use of the Tenant(s): _____

Any damage to the Landlord's appliances shall be the liability of the Tenant(s), reasonable wear-and-tear excepted, to be billed directly or less the Security Deposit.

☐ - Not provide any appliances on the Premises.

9. Non-Sufficient Funds (NSF Checks). If the Tenant(s) pays the Rent with a check that is not honored due to insufficient funds (NSF):

☐ - There shall be a fee of \$_____ (US Dollars) per incident.

☐ - There shall be no fee.

10 Late Fee. If Rent is not paid on the Due Date:

☐ - There shall be a penalty of _____

Rent is considered late when it has not been paid ____ days after it is due [if there is no grace period write "0"].

☐ - There shall be no late fee if rent is late.

11. First (1st) Month's Rent. The First (1st) month's rent shall be due by the Tenant(s):

☐ - Upon the execution of this Agreement.

☐ - Upon the first (1st) day of the Lease Term.

12. Pre-Payment. The Tenant(s) shall:

☐ - Pre-Pay Rent in the amount of \$_____ (US Dollars) for the following time-period starting on the ____ day of _____, 20____ and ending on the ____ day of _____, 20____. The Pre-Payment of Rent will be due at the execution of this Agreement.

☐ - Not be required to Pre-Pay Rent.

13. Proration Period. The Tenant(s):

☐ - Will be moving-in to the Premises before the start of the Lease Term on the ____ day of _____, 20____ and shall pay \$_____ (US Dollars) which is the Rent pro-rated on a daily basis which shall be paid by the Tenant(s) upon the execution of this Agreement.

☐ - Will not be moving-in to the Premises before the Lease Term.

14. Possession. Tenant(s) has examined the condition of the Premises and by taking possession acknowledges that they have accepted the Premises in good order and in its current condition except as herein otherwise stated. Failure of the Landlord to deliver possession of the Premises at the start of the Lease Term to the Tenant(s) shall terminate this Agreement at the option of the Tenant(s). Furthermore, under such failure to deliver possession by the Landlord, and if the

Tenant(s) cancels this Agreement, the Security Deposit (if any) shall be returned to the Tenant(s) along with any other pre-paid rent, fees, including if the Tenant(s) paid a fee during the application process before the execution of this Agreement.

15. Access. Upon the beginning of the Proration Period or the start of the Lease Term, whichever is earlier, the Landlord agrees to give access to the Tenant(s) in the form of keys, fobs, cards, or any type of keyless security entry as needed to enter the common areas and the Premises. Duplicate copies of the access provided may only be authorized under the consent of the Landlord and, if any replacements are needed, the Landlord may provide them for a fee. At the end of this Agreement all access provided to the Tenant(s) shall be returned to the Landlord or a fee will be charged to the Tenant(s) or the fee will be subtracted from the Security Deposit.

16. Move-In Inspection. Before, at the time of the Tenant(s) accepting possession, or shortly thereafter, the Landlord and Tenant(s):

- ☐ - Agree to inspect the Premises and write any present damages or needed repairs on a move-in checklist.
- ☐ - Agree to not inspect the Premises.

17. Subletting. The Tenant(s) shall not be able to sublet the Premises without the written consent from the Landlord. The consent by the Landlord to one subtenant shall not be deemed to be consent to any subsequent subtenant.

18. Abandonment. If the Tenant(s) vacates or abandons the property for a time-period that is the minimum set by State law or seven (7) days, whichever is less, the Landlord shall have the right to terminate this Agreement immediately and remove all belongings including any personal property off of the Premises. If the Tenant(s) vacates or abandons the property, the Landlord shall immediately have the right to terminate this Agreement.

19. Assignment. Tenant(s) shall not assign this Lease without the prior written consent of the Landlord. The consent by the Landlord to one assignment shall not be deemed to be consent to any subsequent assignment.

20. Parking. The Landlord:

☐ - Shall provide ____ parking space(s) to the Tenant(s) for a fee of \$_____ (US Dollars) to be paid

☐ at the execution of this Agreement ☐ on a monthly basis in addition to the rent. The parking space(s) are described as: _____.

☐ - Shall not provide parking.

21. Right of Entry. The Landlord shall have the right to enter the Premises during normal working hours by providing at least twenty-four (24) hours' notice in order for inspection, make necessary repairs, alterations or improvements, to supply services as agreed or for any reasonable purpose. The Landlord may exhibit the Premises to prospective purchasers, mortgagees, or lessees upon reasonable notice.

22. Sale of Property. If the Premises is sold, the Tenant(s) is to be notified of the new Owner, and if there is a new Manager, their contact details for repairs and maintenance shall be forwarded. If the Premises is conveyed to another party, the new owner:

☐ - Has the right to terminate this Agreement by providing ____ days' notice to the Tenant(s).

☐ - Does not have the right to terminate this Agreement.

23. Utilities. The Landlord shall provide the following utilities and services to the Tenant(s):

Any other utilities or services not mentioned will be the responsibility of the Tenant(s).

24. Maintenance, Repairs, or Alterations. The Tenant(s) shall, at their own expense and at all times, maintain premises in a clean and sanitary manner, and shall surrender the same at termination hereof, in as good condition as received, normal wear and tear excepted. The Tenant(s) may not make any alterations to the leased premises without the consent in writing of

the Landlord. The Landlord shall be responsible for repairs to the interior and exterior of the building. If the Premises includes a washer, dryer, freezer, dehumidifier unit and/or air conditioning unit, the Landlord makes no warranty as to the repair or replacement of units if one or all shall fail to operate. The Landlord will place fresh batteries in all battery-operated smoke detectors when the Tenant(s) moves into the premises. After the initial placement of the fresh batteries it is the responsibility of the Tenant(s) to replace batteries when needed. A monthly "cursory" inspection may be required for all fire extinguishers to make sure they are fully charged.

25. Early Termination. The Tenant(s):

☐ - Shall have the right to terminate this Agreement at any time by providing at least ____ days' written notice to the Landlord along with an early termination fee of \$_____ (US Dollars). During the notice period for termination the Tenant(s) will remain responsible for the payment of rent.

☐ - Shall not have the right to terminate this Agreement.

26. Pets. The Tenant(s):

☐ - Shall have the right to ____ [# of Pets] pet(s) on the Premises consisting of _____ [Types of Pets Allowed] that are not to weigh over ____ pounds. For the right to have pet(s) on the Premises the Landlord shall charge a fee of \$_____ (US Dollars) that is ☐ refundable unless there are damages related to the pet ☐ non-refundable. The Tenant(s) is responsible for all damage that any pet causes, regardless of ownership of said pet and agrees to restore the property to its original condition at their expense.

☐ - Shall not have the right to have pets on the Premises or in the common areas.

27. Noise/Waste. The Tenant(s) agrees not to commit waste on the premises, maintain, or permit to be maintained, a nuisance thereon, or use, or permit the premises to be used, in an unlawful

manner. The Tenant(s) further agrees to abide by any and all local, county, and State noise ordinances.

28. Guests. There shall be no other persons living on the Premises other than the Tenant(s) and any Occupant(s). Guests of the Tenant(s) are allowed for periods not lasting for more than 48 hours unless otherwise approved by the Landlord in writing.

29. Smoking Policy. Smoking on the Premises is:

☐ - Permitted in the following areas: _____

☐ - Prohibited on the Premises and Common Areas.

30. Compliance with Law. The Tenant(s) agrees that during the term of the Agreement, to promptly comply with any present and future laws, ordinances, orders, rules, regulations, and requirements of the Federal, State, County, City, and Municipal government or any of their departments, bureaus, boards, commissions and officials thereof with respect to the premises, or the use or occupancy thereof, whether said compliance shall be ordered or directed to or against the Tenant(s), the Landlord, or both.

31. Default. If the Tenant(s) fails to comply with any of the financial or material provisions of this Agreement, or of any present rules and regulations or any that may be hereafter prescribed by the Landlord, or materially fails to comply with any duties imposed on the Tenant(s) by statute or State laws, within the time period after delivery of written notice by the Landlord specifying the non-compliance and indicating the intention of the Landlord to terminate the Agreement by reason thereof, the Landlord may terminate this Agreement. If the Tenant(s) fails to pay rent when due and the default continues for the time-period specified in the written notice thereafter, the Landlord may, at their option, declare the entire balance (compiling all months applicable to this Agreement) of rent payable hereunder to be immediately due and payable and may exercise any and all rights and remedies available to the Landlord at law or in equity and may immediately terminate this Agreement.

The Tenant(s) will be in default if: (a) Tenant(s) does not pay rent or other amounts that are owed; (b) Tenant(s), their guests, or the Occupant(s) violate this Agreement, rules, or fire, safety, health, or criminal laws, regardless of whether arrest or conviction occurs; (c) Tenant(s) abandons the Premises; (d) Tenant(s) gives incorrect or false information in the rental application; (e) Tenant(s), or any Occupant(s) is arrested, convicted, or given deferred adjudication for a criminal offense involving actual or potential physical harm to a person, or involving possession, manufacture, or delivery of a controlled substance, marijuana, or drug paraphernalia under state statute; (f) any illegal drugs or paraphernalia are found in the Premises or on the person of the Tenant(s), guests, or Occupant(s) while on the Premises and/or; (g) as otherwise allowed by law.

32. Multiple Tenant(s) or Occupant(s). Each individual that is considered a Tenant(s) is jointly and individually liable for all of this Agreement's obligations, including but not limited to rent monies. If any Tenant(s), guest, or Occupant(s) violates this Agreement, the Tenant(s) is considered to have violated this Agreement. Landlord's requests and notices to the Tenant(s) or any of the Occupant(s) of legal age constitutes notice to the Tenant(s). Notices and requests from the Tenant(s) or any one of the Occupant(s) (including repair requests and entry permissions) constitutes notice from the Tenant(s). In eviction suits, the Tenant(s) is considered the agent of the Premise for the service of process.

33. Disputes. If a dispute arises during or after the term of this Agreement between the Landlord and Tenant(s), they shall agree to hold negotiations amongst themselves, in "good faith", before any litigation.

34. Severability. If any provision of this Agreement or the application thereof shall, for any reason and to any extent, be invalid or unenforceable, neither the remainder of this Agreement nor the application of the provision to other persons, entities or circumstances shall be affected thereby, but instead shall be enforced to the maximum extent permitted by law.

35. Surrender of Premises. The Tenant(s) has surrendered the Premises when (a) the move-out date has passed, and no one is living in the Premise within the Landlord's reasonable judgment; or

(b) Access to the Premise have been turned in to Landlord – whichever comes first. Upon the expiration of the term hereof, the Tenant(s) shall surrender the Premise in better or equal condition as it were at the commencement of this Agreement, reasonable use, wear and tear thereof, and damages by the elements excepted.

36. Retaliation. The Landlord is prohibited from making any type of retaliatory acts against the Tenant(s) including but not limited to restricting access to the Premises, decreasing or cancelling services or utilities, failure to repair appliances or fixtures, or any other type of act that could be considered unjustified.

37. Waiver. A Waiver by the Landlord for a breach of any covenant or duty by the Tenant(s), under this Agreement is not a waiver for a breach of any other covenant or duty by the Tenant(s), or of any subsequent breach of the same covenant or duty. No provision of this Agreement shall be considered waived unless such a waiver shall be expressed in writing as a formal amendment to this Agreement and executed by the Tenant(s) and Landlord.

38. Equal Housing. If the Tenant(s) possesses any mental or physical impairment, the Landlord shall provide reasonable modifications to the Premises unless the modifications would be too difficult or expensive for the Landlord to provide. Any impairment(s) of the Tenant(s) are encouraged to be provided and presented to the Landlord in writing in order to seek the most appropriate route for providing the modifications to the Premises.

39. Hazardous Materials. The Tenant(s) agrees to not possess any type of personal property that could be considered a fire hazard such as a substance having flammable or explosive characteristics on the Premises. Items that are prohibited to be brought into the Premises, other than for everyday cooking or the need of an appliance, includes but is not limited to gas (compressed), gasoline, fuel, propane, kerosene, motor oil, fireworks, or any other related content in the form of a liquid, solid, or gas.

40. Waterbeds. The Tenant(s):

☐ - Shall have the right to use a waterbed on the Premises.

☐ - Shall not have the right to use a waterbed on the Premises.

41. Indemnification. The Landlord shall not be liable for any damage or injury to the Tenant(s), or any other person, or to any property, occurring on the Premises, or any part thereof, or in common areas thereof, and the Tenant(s) agrees to hold the Landlord harmless from any claims or damages unless caused solely by the Landlord's negligence. It is recommended that renter's insurance be purchased at the Tenant(s)'s expense.

42. Covenants. The covenants and conditions herein contained shall apply to and bind the heirs, legal representatives, and assigns of the parties hereto, and all covenants are to be construed as conditions of this Agreement.

43. Notices. Any notice to be sent by the Landlord or the Tenant(s) to each other shall use the following mailing addresses:

Landlord's or Agent's Mailing Address

Tenant(s)'s Mailing Address

44. Agent/Manager.

☐ - The Landlord has a manager on the Premises that can be contacted through the following for maintenance or repairs: Telephone _____ E-Mail _____

☐ - The Landlord does not have a manager on the Premises although the Landlord can be contacted for any maintenance or repair at: Telephone _____
E-Mail _____

45. Premises Deemed Uninhabitable. If the Property is deemed uninhabitable due to damage beyond reasonable repair the Tenant(s) will be able to terminate this Agreement by written notice to the Landlord. If said damage was due to the negligence of the Tenant(s), the Tenant(s) shall be liable to the Landlord for all repairs and for the loss of income due to restoring the Premises back to a livable condition in addition to any other losses that can be proved by the Landlord.

46. Lead Paint.

☐ - The Premises was built prior to 1978 and there is an attachment titled the 'Lead-Based Paint Disclosure' that must be initialed and signed by the Landlord and Tenant(s).

☐ - The Premises was not built prior to 1978.

47. Governing Law. This Agreement is to be governed under the laws located in the State of New Mexico.

48. Additional Terms & Conditions.

49. Entire Agreement. This Agreement contains all the terms agreed to by the parties relating to its subject matter including any attachments or addendums. This Agreement replaces all previous discussions, understandings, and oral agreements. The Landlord and Tenant(s) agree to the terms and conditions and shall be bound until the end of the Lease Term.

The parties have agreed and executed this agreement on the ____ day of _____,
20____.

Landlord(s):

Signature _____ Printed Name _____

Date _____

Signature _____ Printed Name _____

Date _____

Tenant(s):

Signature _____ Printed Name _____

Date _____

Signature _____ Printed Name _____

Date _____

Signature _____ Printed Name _____

Date _____

Signature _____ Printed Name _____

Date _____

Signature _____ Printed Name _____

Date _____

Signature _____ Printed Name _____

Date _____

AMOUNT (\$) DUE AT SIGNING

Security Deposit: \$ _____ (US Dollars)

First (1st) Month's Rent: \$ _____ (US Dollars)

Parking Fee: \$ _____ (US Dollars)

Pet Fee(s): \$ _____ (US Dollars)

Pre-Payment of Rent: \$ _____ (US Dollars)

Proration Amount: \$ _____ (US Dollars)